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#2 - TAICHANDRA FYELDEES vs PEIWEN CHANG

PLAINTIFF'S MOTION FOR NEW TRIAL AND ALTERNATIVE REQUEST FOR LEAVE TO AMEND COMPLAINT

Plaintiff Taichandra Fyeldees moves for a new trial, or alternatively for leave to amend, following the non-jury trial in this action against Defendant Peiwen Chang.

On January 27, 2026, the Court conducted a non-jury trial. Plaintiff and Defendant both appeared in pro per, Plaintiff waived a court reporter, Plaintiff testified, Plaintiff's exhibits were marked for identification, Defendant submitted a stipulation signed by the parties permitting Plaintiff to amend the complaint to conform to proof, Defendant presented his exhibits, the Court conferred with the parties regarding the evidence, most exhibits were received into evidence, and the parties waived closing arguments. (1/27/26 Minute Order.)

The Court did not admit Plaintiff's Exhibit 3, identified as a letter from a psychologist, or Plaintiff's exhibit 7, identified as text messages from the back-house tenant.

On March 13, 2026, the Court issued its decision finding in favor of Plaintiff on the premises-liability cause of action, finding in favor of Defendant on the intentional-tort cause of action, and awarding Plaintiff total damages of \$8,408.75. (3/13/26 Minute Order.)

The Court's damages ruling awarded a 50 percent rent reduction for six months, or \$3,294, plus \$114.75 for rat supplies and \$5,000 in general damages, and it rejected claimed damages for Airbnb, storage, damage to the screen door and inflatable pool, and loss of the camper dolly. A Notice of Entry of Judgment was filed and served on May 18, 2026.

On June 1, 2026, Plaintiff filed a notice of intention to move for new trial. On June 10, Plaintiff filed her motion, seeking a new trial on the grounds of irregularity in the proceedings, accident or surprise, newly discovered evidence, and insufficiency of the evidence, and alternatively seeks leave to amend the complaint.

Tentative Ruling

Plaintiff's motion for new trial is DENIED. Plaintiff's alternative request for leave to amend the complaint is DENIED.

Legal Authority

Pursuant to Code of Civil Procedure section 657, a motion for a new trial may be granted if there is any of the following:

1. Irregularity

in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.

2. Misconduct

of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors.

3. Accident

or surprise, which ordinary prudence could not have guarded against.

4. Newly

discovered evidence, material for the party making the application, which he

could not, with reasonable diligence, have discovered and produced at the trial.

5. Excessive
or inadequate damages.

6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error
in law, occurring at the trial and excepted to by the party making the application.

When ruling on an application for a new trial, the court sits as an independent trier of fact. (Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) The court, therefore, has broad discretion to order new trials, limited only by the obligation to state its reasons for granting a new trial and the existence of substantial evidence in the record to support those reasons. (Id.) In assessing the need for a new trial, the court must rely on its view of the overall record, taking into account such factors, among others, as the nature and seriousness of the alleged misconduct, the general atmosphere, including the judge's control, of the trial, the likelihood of prejudicing the jury, and the efficacy of objection or admonition under all the circumstances. (Dominguez v. Pantalone (1989) 212 Cal.App.3d 201, 211.)

Legal Analysis

1. Irregularity in the Proceedings / Accident or Surprise

Plaintiff contends the trial was originally scheduled for two days but was compressed into one day, which she says prevented her from fully testifying, calling Defendant as a witness, and introducing all prepared evidence. (Motion, p. 4.) In opposition, Defendant responds that neither party objected to the conclusion of trial or asked for more time to present evidence. (Opp., p. 3.)

The January 27, 2026 minute order reflects that Plaintiff testified, her exhibits were marked, the parties conferred regarding the submission of evidence, most exhibits were admitted, and the parties waived closing arguments. (1/27/26 Minute

Order.) On this record, Plaintiff has not shown an irregularity or surprise that deprived her of a fair trial.

2. Newly Discovered Evidence

Plaintiff identifies as newly discovered date-stamped videos and screenshots documenting the rat infestation beginning in December 2022, related text messages, and medical evidence including a therapist letter, prescription records, and expected psychologist testimony. (Motion, p. 5.)

The January 27, 2026 minute order shows that Plaintiff's trial exhibits already included multiple videos dated December 1, 2, 3, and 12 of 2022, videos dated April 18 and April 23, 2023, a letter from a psychologist, and text messages. The showing does not warrant a new trial.

3. Insufficiency of the Evidence

Plaintiff argues the judgment should have used a December 2022 start date for damages, a different rent figure, compensated Airbnb and storage expenses, imposed liability for harms associated with the rear tenant, and awarded tuition reimbursement. (Motion, pp. 5-6.)

The Court's March 13, 2026 decision expressly found that Plaintiff prevailed on premises liability, expressly rejected the intentional-tort claim, and expressly rejected claimed Airbnb and storage damages as not caused by Defendant. (3/13/26 Minute Order.) That decision also found that, for the relevant period of April through September 2023, Defendant's conduct was responsive to Plaintiff's habitability complaints and did not constitute extreme or outrageous conduct with respect to Plaintiff's declining relationship with the rear tenant. The trial exhibits included Plaintiff's December 2022 videos, and the Court nonetheless found the rodents presented a substantial problem for six months. After reweighing the evidence and reasonable inferences, the Court is not convinced it clearly should have reached a different decision or a different damages award.

4. Leave to Amend

The trial record reflects that Defendant submitted a

stipulation signed by the parties allowing Plaintiff to amend the complaint to conform to proof. (1/27/26 Minute Order.) The alternative request for leave to amend is therefore denied.

5. Defendant's Additional Argument

The opposition also asserts that Plaintiff "accepted the full and complete payment" of the \$8,408.75 judgment by depositing Defendant's check on May 11, 2026, before judgment was entered on May 17, 2026. (Opp., p. 4; Chang Decl., ¶¶ 2-5, Exhs. 1-3.) Because the motion fails on the merits, the Court need not reach Defendant's additional argument.

Court is to give notice.